



U.S. Department
of Transportation

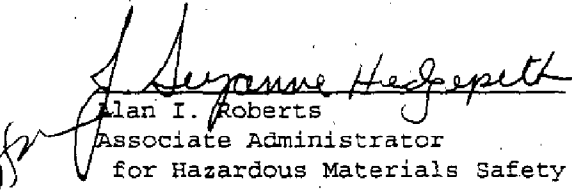
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9701 (EXTENSION)
FIRST REVISION June 6, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9701 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to August 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Trimeg Holdings Ltd.
Calgary, Alberta, Canada
(U.S. AGENT: Meridian Traffic Service Inc.
Braintree, MA)

September 2, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

Expired NOT Active



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MAY 29 1987

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DOT-E 9701

1. Trimeg Holdings, Ltd., Calgary, Alberta, Canada (U.S. Agent: Meridian Traffic Service, Inc., Quincy, Mass.), is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the flammable solids, corrosive solids and oxidizers (solids only) described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking and sale of large, collapsible polyethylene-lined woven polypropylene bulk bags having a capacity of no more than 2500 pounds each, and top and/or bottom outlets, for shipment of flammable and corrosive solids and oxidizers (solids only), and provides no relief from any regulation other than as specifically stated.

2. **BASIS.** This exemption is based on Trimeg Holdings, Ltd's application dated November 21, 1986, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. **HAZARDOUS MATERIALS (Descriptor and class).** Aluminum nitrate, Ammonium nitrate fertilizer, Ammonium persulfate, Chromic acid (solid and dry), Potassium nitrate, Sodium persulfate, classed as oxidizers; Magnesium granules, classed as flammable solids; Sodium hydroxide, Sodium sulfide, classed as corrosive materials; and other oxidizer, flammable solids or corrosive solids specifically identified to, and acknowledged in writing by, this office prior to the first shipment.

4. **PROPER SHIPPING NAME (49 CFR 172.101).** Oxidizer, n.o.s., Flammable solid, n.o.s., Corrosive solid, n.o.s.; or the specific chemical name or generic commodity description, as appropriate.

5. **REGULATION AFFECTED.** 49 CFR 173.154, 173.164, 173.178, 173.182, 173.245b.

6. **MODES OF TRANSPORTATION AUTHORIZED.** Motor vehicle, rail freight, cargo vessel.

7. **SAFETY CONTROL MEASURES.** Packaging prescribed is a non-DOT specification collapsible flexible bag, disposable bulk container. Bag is fabricated of woven polypropylene, incorporating lifting straps of woven polyester webbing, plus a lining of polyethylene film (of 0.004-inch minimum thickness), and having discharge and/or inlet openings, and a capacity of not over 2500 pounds. Four types of FIBC are authorized: Type H2 - with top closure skirt and no bottom outlet; Type H3 - with top closure skirt and bottom outlet; Type H4 - with top outlet and no bottom outlet; Type H5 - with top and bottom outlets. Bag, prepared as for shipment, must be capable of satisfactorily withstanding: free-fall drop tests (three from a height of four feet); Jerk test; Topple test; Topple and Drag test; Righting test, Abrasion test; as described in "Procedures for Performance Testing of Flexible Intermediate Bulk Containers," Packaging Institute, U.S.A., procedure T-4102-85, dated February, 1985.

8. **SPECIAL PROVISIONS.**

a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

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b. Shipment by highway must be in closed vehicles or freight containers, in full truckloads only, except that ammonium nitrate fertilizer need not be in closed vehicles.

c. Shipment by rail must be in DF box cars except that COFC or TOFC service is authorized in accordance with 49 CFR 174.61.

d. When bulk bags are transported by vessel, the following additional special provisions apply:

i. Oxidizing materials and flammable solids in UN/IMO packaging groups I and II, as listed in 49 CFR Table 172.102, and all corrosive solids listed in Section 3 must be shipped in closed freight containers or transport vehicles.

ii. Oxidizers and flammable solids listed in Section 3 which are in UN/IMO packaging group III, as listed in 49 CFR Table 172.102, may be shipped as follows:

(1) In closed freight containers or transport vehicles.

(2) As break-bulk cargo, provided -

(a) No other hazardous material or non-regulated combustible material is stowed in the same hold or compartment.

(b) The hold or compartment is dry and thoroughly cleaned of all loose debris and dunnage.

(c) The hatches are inspected for watertightness before loading.

(d) The hold or compartment is free of sharp projections which could tear or puncture the bags.

(e) After the bags are unloaded, the hold or compartment is inspected for spillage and any residue removed.

iii. When any oxidizer listed in Section 3 is loaded or unloaded as break-Bulk cargo:

(1) Firehoses must be laid out in the loading or unloading area and must be operable at all times.

(2) Smoking, carrying matches or lighting devices, or performing hot work shall be prohibited in the loading or unloading area; and the area posted with appropriate warning signs.

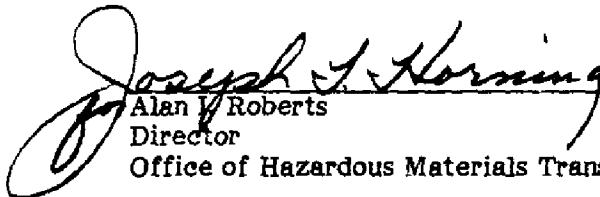
iv. The provisions of 49 CFR 176.410(d), except subparagraphs (d)(1) and (d)(2), do not apply to shipments of ammonium nitrate fertilizer by vessel under this exemption.

(e) A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. May 1, 1989.

Issued at Washington, D.C.:


Alan V. Roberts
Director
Office of Hazardous Materials Transportation

MAY 29 1987

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA, USCG.